

Tentative Rulings and Resolution Review Hearings

June 1, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

ALLEN VS. SHRANER, ET AL.

CASE NUMBER: 25CV-0206889

Tentative Ruling on Motion to Compel Responses: Defendants Michael J. Schraner and Janet Schraner move to compel Plaintiff Michael D. Allen provide responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One. Despite being properly served, Plaintiff did not oppose the motion.

A party has thirty days after service to respond to a Request for Production, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a) and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a) and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to do so, Defendants' counsel sent a letter to Plaintiff on two occasions attempting to meet and confer.

Defendants have provided evidence that Plaintiff was served by mail on January 27, 2026 with Defendants' Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One. It is now more than thirty days since Plaintiff was served and Plaintiff has not responded to any of the propounded discovery. The Court finds that there is good cause justifying the discovery sought by Defendants.

Sanctions. CCP §§ 2031.300(c) and 2030.290(c) only provide for sanctions when an unsuccessful opposition is made. However, the Court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when no opposition was filed. CRC 3.1348. Defendant seeks \$1,260 in monetary sanctions which is comprised of a \$60 motion fee and attorney time of four hours. Counsel requests the rate of \$300 per hour which the Court finds to be reasonable. Monetary sanctions are awarded to Defendants in the amount of \$1,260.

The motion is **GRANTED**. Plaintiff is **ORDERED** to provide verified discovery responses within twenty days of the service of the Notice of Entry of Order. Objections are waived. Defendants' request for monetary sanctions is **GRANTED** in the amount of \$1,260. Defendants did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendants are to prepare the Order.

ASBE VS. ROBBINS

CASE NUMBER: 26APSC-0005

Tentative Ruling on Motion to Set Aside Judgment: Defendant John Robbins moves to set aside the judgment entered against him following Defendant's nonappearance at a trial de novo on March 30, 2026. Despite being properly noticed of today's hearing, Plaintiff Kelly Asbe did not file an Opposition.

Defendant moves under CCP § 437(b) to have the judgment set aside because the Notice of Appeal contained an incorrect address for Defendant, which resulted in the Notice of Hearing being mailed to the wrong address. The Notice of Hearing was returned to the court as undeliverable and Defendant and his counsel have declared that they had no notice of the hearing date until after judgment was entered. CCP § 473(b) reads, in part, "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." The typographical error in the Notice of Appeal, filed by Defendant, was a mistake that resulted in a judgment being taken against Defendant. Defendant had no notice of the hearing date for the trial de novo on March 30, 2026. Once Defendant learned that a judgment had been entered against him, he acted diligently in seeking to have the judgment set aside.

The motion is **GRANTED**. The judgment entered on March 30, 2026, is set aside pursuant to CCP § 473(b). The parties are ordered to appear to set a new hearing date for the trial de novo. If both parties do not appear, the Court will select a hearing date. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

BANK OF AMERICA, N.A. VS. METZGER

CASE NUMBER: 25CVG-00681

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement: Plaintiff Bank of America, N.A. seeks to vacate the dismissal entered on July 22, 2025, and enforce the Stipulation Agreement filed on July 7, 2025. Despite being properly noticed, Defendant Lauren Adriana Marie Metzger did not file an Opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed in this matter on July 7, 2025. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The Stipulation Agreement filed with the Court on July 7, 2025, was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$7,334.98 which consists of \$6,791.37 in principal and \$543.61 in costs. The agreement calls for a payment of \$488.98 on or before April 29, 2025, followed by minimum monthly payments of \$489 starting May 29, 2025, until fully paid. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant's failure to comply with the terms of payment described in the agreement.

The declaration of attorney Anthony DiPiero establishes that Defendant has paid a total of \$4,889.98 and has not made a payment since January 25, 2026. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests entry of judgment in the amount of \$2,505.00 which includes remaining principal in the amount of \$1,901.39 and court costs in the amount of \$603.61. While the Memorandum of Costs filed on May 7, 2026 includes \$603.61 in costs, the parties stipulated to a specific amount of \$543.61 for costs, not costs pursuant to a Memorandum of Costs. Therefore, the judgment will be \$2,445.00 which is comprised of the remaining principal and costs in the amount of \$543.61.